

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX-----X  
QUENDRE HODGES,

Plaintiff,

--against--

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, and POLICE OFFICER ELBERT TIM,Defendants.  
-----X

To the above named Defendants

Index No.

Date Purchased

SUMMONS

Plaintiff designates Bronx  
County as the place of trialThe basis of the venue is  
Place of occurrencePlaintiff resides at 1056  
Boynton Avenue #7C  
Bronx, New York

County of BRONX

**YOU ARE HEREBY SUMMONED** to Answer the Complaint in this Action, and to serve a copy of your Answer, or if the complaint is not served with the summons, to serve a notice of appearance on the Plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: May 8, 2019

BRUCE H. GOLDBERG, ESQ.

  
*Attorney (for Plaintiff)*  
272 E. 149<sup>th</sup> Street  
Bronx, New York 10451  
(718) 585-6144TO: THE CITY OF NEW YORK  
100 Church Street  
New York, NY 10007NEW YORK CITY POLICE DEPARTMENT 42<sup>ND</sup> PRECINCT  
830 Washington Avenue  
Bronx, New York 10451POLICE OFFICER ELBERT TIM  
NYPD 42<sup>ND</sup> Precinct  
830 Washington Avenue  
Bronx, New York 10451

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX-----X  
QUENDRE HODGES,

Index No.

Plaintiff,

VERIFIED COMPLAINT

--against--

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, and POLICE OFFICER ELBERT TIM,Defendants.  
-----X

QUENDRE HODGES, by her attorney, BRUCE H. GOLDBERG, respectfully alleges, as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff QUENDRE HODGES, is a resident of Bronx County, City and State of New York.

2. At all times mentioned, Defendant THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing by virtue of the Laws of the State of New York.

3. Upon information and belief, at all times mentioned, Defendant THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, and POLICE OFFICER ELBERT TIM, were and are police officers of the Defendant The City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant THE CITY OF NEW YORK.

4. On May 1, 2018, A Notice of Claim was served and filed against THE CITY OF NEW YORK. An oral examination of Plaintiff was conducted on July 18, 2018.

5. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one (1) year and ninety (90) days after the happening of the event upon which claims are based.

6. Upon information and belief, at all times mentioned, Defendant THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, and POLICE OFFICER ELBERT TIM, were and are police officers of the Defendant The City of New York, and at all times were acting in such capacity as the agents, servants and employees of the Defendant THE CITY OF NEW YORK.

7. On or about July 31, 2017, Plaintiff entered into a written agreement with Gladys Johnson, the tenant of 1413 Prospect Avenue, Apartment 1D, Bronx, New York (hereinafter referred to as "the premises") to reside in said apartment with her two (2) children.

8. Said apartment is subject to the Rent Stabilization Laws of 1969 as amended.

9. Plaintiff and her family occupied the apartment continually and lawfully and did so on the dates of February 13, 2018 and February 14, 2018.

10. Plaintiff occupied the apartment with Tenant, Gladys Johnson and her son Jaron Johnson.

11. On or about February 13, 2018 to February 14, 2018, at 1413 Prospect Avenue Apartment 1D, Bronx, New York, Plaintiff was threatened with a machete by Jaron Johnson.

12. On or about February 13, 2018 to February 14, 2018, at 1413 Prospect Avenue Apartment 1D, Bronx, New York, Jaron Johnson fled the apartment with the machete and Plaintiff's keys to the premises.

13. As a result of said threat and seizure, Plaintiff made an emergency 911 call for police

assistance.

14. On or about February 13, 2018 to February 14, 2018, Officers from Defendant NEW YORK CITY POLICE DEPARTMENT responded to the emergency call at the aforesaid apartment location.

15. On or about February 14, 2019, Defendant POLICE OFFICER ELBERT TIM performed a cursory investigation of the incident.

16. During said investigation, Plaintiff advised defendant POLICE OFFICER ELBERT TIM that Jaron Johnson fled with the machete and Plaintiff's apartment keys.

17. Plaintiff advised POLICE OFFICER ELBERT TIM that she was a lawful occupant of said premises and requested that said defendant make attempts to locate Jaron Johnson and her keys.

18. Without lawful cause, Defendant POLICE OFFICER ELBERT TIM demanded that Plaintiff and her family leave the premises.

19. Upon information and belief, a court order did not exist ordering Plaintiff's removal from the residence.

20. Sometime thereafter, defendant POLICE OFFICER ELBERT TIM recovered the machete.

21. Defendant POLICE OFFICER ELBERT TIM did not voucher said machete as evidence but rather unlawfully disposed of same.

22. Defendants jointly and severally and this Defendant in his capacity as police officer then wrongfully removed Plaintiff and her family from said residence in which she was a lawful occupant. At no time did Defendants have legal cause to remove Plaintiff nor did Plaintiff consent to being removed from said apartment.

23. As a result of the unlawful removal of Plaintiff from said apartment, Plaintiff and her family became homeless and entered into the shelter system.

24. As a result of the unlawful removal, eviction and ejectment of Plaintiff from said apartment, Plaintiff was deprived of lawful possession of the premises and suffered the humiliation, mental anguish, and dignity and frustration of an unjust and unlawful eviction and is entitled to treble damages pursuant to RPAPL section 853.

AS AND FOR A SECOND CAUSE OF ACTION.

(This Cause of Action only applies against the Individually named Police Officer not the City of New York or officers sued in their official capacity)

25. Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "24" with full force and effect as though set forth at length herein.

26. Defendants POLICE OFFICER ELBERT TIM, was at all times relevant, duly appointed and acting officers of the City of New York Police Department.

27. At all times mentioned herein, said police office was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

28. Plaintiff QUENDRE HODGES is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

29. The Defendant CITY OF NEW YORK, is a municipality duly incorporated under the laws of the State of New York.

30. On or about February 13, 2018 to February 14, 2018, the Defendant, an armed police

officer, while effectuating the unlawful removal of Plaintiff QUENDRE HODGES from her apartment, did so by intimidation, coercion and his show of authority and seized the rights of Plaintiff to maintain her occupancy in the premises.

31. Plaintiff did not consent to said removal.

32. The above action of the Defendant resulted in the Plaintiff being deprived of the following rights under the United States Constitution, namely the Fourth and Fourteenth Amendments:

- a. Freedom from unreasonable search and seizure;
- b. Freedom to be secure in one's home
- c. Deprivation to Plaintiff's person of life, liberty, or property, without due process of law;

33. The Defendants subjected the Plaintiff to such deprivations, either in malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

34. The direct and proximate result of the Defendant's acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

**AS AND FOR A THIRD CAUSE OF ACTION**

(This Cause of Action applies to the City of New York and the officer sued in his official capacity should be characterized as a "Monell" claim.)

35. Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "34" with full force and effect as though set forth at length herein.

36. Defendant THE CITY OF NEW YORK, NEW YORK CITY POLICE

DEPARTMENT have grossly failed to train and adequately supervise defendant POLICE OFFICER ELBERT TIM and Officers of the New York City Police Department in the fundamental law of due process, especially when its police officers are not in possession of a court authorized eviction orders and where an individual, especially as here, has lawful rights to the possession of an apartment.

37. THE CITY OF NEW YORK was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff(or similarly situated individuals) or without the possession of a court authorized eviction order, said police officers of the City of New York are not to remove individuals such as the Plaintiff here where a court order is lacking and the use of his show of authority should not be used to unlawfully evict a lawful apartment occupant.

38. THE CITY OF NEW YORK is negligent due to its failure to implement a policy with its Police Department to actively enforce the law, while ensuring that the U.S. Constitution is not violated, in that police officers, including those named are not trained of the following:

- a. Freedom from unreasonable search and seizure;
- b. Freedom to be secure in one's home
- c. Deprivation to Plaintiff's person of life, liberty, or property, without due process of law;

39. The foregoing acts, omissions and systemic failures are customs and policies of THE CITY OF NEW YORK which caused the police officers, namely defendant POLICE OFFICER ELBERT TIM to unlawfully evict the Plaintiff and to unlawfully dispose of evidence under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

40. Defendant, CITY OF NEW YORK was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officers Defendant, knew or should have known of the bad disposition of said Defendant or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning his bad disposition and the fact that this officer was not suitable to be hired and employed by the CITY OF NEW YORK and that due to his lack of training, this officer should have had adequate supervision.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise would have jurisdiction, together with attorneys fees and costs for bringing this case and punitive damages.

Yours,



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BRUCE H. GOLDBERG, ESQ.  
Attorney for Plaintiff  
272 East 149<sup>th</sup> Street  
Bronx, New York 10451  
(718) 585-6144

VERIFICATION

STATE OF NEW YORK            )  
                                          ) ss.:  
COUNTY OF BRONX            )

QUENDRE HODGES, being duly sworn, hereby deposes and says:

I am the plaintiff in the above entitled action; I have read the foregoing

VERIFIED COMPLAINT

and know the contents thereof; that the same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters I believe them to be true.

\_\_\_\_\_  
QUENDRE HODGES

Sworn to before me this  
8<sup>th</sup> day of May 2019

\_\_\_\_\_  
Notary Public

**VERIFICATION**

STATE OF NEW YORK           )  
                                          ) ss.:  
COUNTY OF BRONX           )

QUENDRE HODGES, being duly sworn, hereby deposes and says:

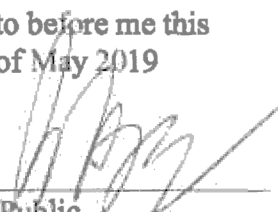
I am the plaintiff in the above entitled action; I have read the foregoing

Verified Complaint

and know the contents thereof; that the same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters I believe them to be true.

  
QUENDRE HODGES

Sworn to before me this  
8<sup>th</sup> day of May 2019

  
Notary Public

BRUCE H. GOLDBERG  
Notary Public, State of New York  
Reg. No. 02GO5011482  
Qualified in Queens County  
Commission Expires 04/18/2023